

11. **Tenant for life refusing to renew.**—It has been said, that if from the threats or acts of the tenant for life [*379] there appears the intention of suffering the lease * to expire, the Court would appoint a receiver of the estate to provide a fund for the renewal (*a*); and that if the tenant for life has already allowed the period for renewal to pass, the rents and profits may be impounded for either procuring a renewal (*b*), or finding the remainderman a compensation (*c*). But no suit *for damages* can be effectually prosecuted before the tenant for life's decease; for so long as it remains uncertain how much of the renewed term will survive to the remainderman, the amount of the injury done to him cannot be ascertained (*d*). It follows that the mere forbearance of the remainderman to bring a suit during the continuance of the life estate cannot be construed into *laches* or acquiescence (*e*).

12. **Admission fines in copyholds.**—The fines, fees and expenses of the *admission* of new trustees to *copyholds* must be borne by the tenant for life and remaindermen in proportion to their respective interests, according to the principles which regulate the renewal of leaseholds. Thus a testator devises copyholds to A. and his heirs upon trust for B. for life, with remainder to C. in fee. A. pays a fine on his admission and dies. His heir is admitted and pays a fine and dies, and his heir again is admitted and pays a fine. Thus the fine for the admission of the trustee is a kind of purchase-money for an estate for life of that trustee. The burthen must be borne by the *cestuis que trust* of the estate, and they contribute to the fines in proportion to their actual enjoyment, as in the case of leaseholds (*f*). These observations are on the assumption that the will or settlement contains no express directions how the fines are to be raised.

(*a*) See *Bennett v. Colley*, 2 M. & K. 233.

(*b*) See S. C. 5 Sim. 192.

(*c*) S. C. 5 Sim. 181; 2 M. & K. 225; and see *Lord Montfort v. Lord Cadogan*, 17 Ves. 490.

(*d*) *Bennett v. Colley*, 5 Sim. 181;

S. C. 2 M. & K. 225; *Harris v. Harris* (No. 3), 32 Beav. 333.

(*e*) *Bennett v. Colley*, 5 Sim. 181; 2 M. & K. 225.

(*f*) *Carter v. Sebright*, 26 Beav. 374; and see *Playters v. Abbott*, 2 M. & K. 108; *Bull v. Birbeck*, 2 Y. & C. C. 447; *Jones v. Jones*, 5 Hare, 461.